Where You Are: The Legal Step and What Comes After It

The nine steps of the Medicaid Planning Roadmap, with yours marked.

When Mom needs care now, the legal questions can feel as if they all have to be settled before anything else can move. They have a place in an order, with steps before them and steps after.

This page shows the whole road, where you are on it, who does which part, and what comes next.

Phase 1 · Assess

Understand where you are today.

1 **Understand** Care Needs → Levels of Care & Costs → Care Plan
You finish with: Immediate Care Needs Assessment

2 **Organize** Income & Assets → Ownership & Expenses → Financial File
You finish with: Financial Snapshot & Care Cost Analysis

3 **Assess** Care & Nonfinancial Eligibility → Income & Assets → Barriers & Readiness
You finish with: Medicaid Readiness Assessment

Phase 2 · Plan

Develop and implement your strategy.

4 **Plan** Barriers & Issues → Priorities & Professional Team → Written Plan
You finish with: Medicaid Action Plan

5 **Legal** Authority & Documents → Property, Trusts & Transfers → Attorney Review
You finish with: Legal Issues & Attorney Review Brief

You are here. This step is about the legal questions in your family's plan: who can act for Mom and what her papers say, then the house, any trust and any transfers, then an elder law attorney's review. Your part ends with the documents found, the facts written down and your questions listed, ready for that review.

6 **Financial** Costs & Runway → Asset Treatment & Tools → Strategy & Documentation
You finish with: Financial Strategy & Implementation Plan

Phase 3 · Secure

Secure benefits, protect assets, and maintain eligibility.

7 **Apply** Prepare → Submit → Manage
You finish with: Medicaid Application File

8 **Protect** What May Be Protected → What May Remain Exposed → What Needs Ongoing Attention
You finish with: Asset Protection Report

9 **Maintain** Ongoing Requirements → Changes & Renewals → Maintenance System

You finish with: Medicaid Maintenance Plan

What this step produces

Organized facts, documents and questions for an elder law attorney: which papers exist and where they are, who they name, how the home and other property are titled, any gifts or changes made or being considered, and what you need answered. It is a family's information, organized. It isn't legal advice, and it doesn't establish that any document, transfer or strategy is right for your family.

What happens next

The step is finished when the legal questions have been identified, reviewed by the appropriate attorney where necessary, and worked into the Medicaid plan. Then comes step six, Financial: costs and runway, then asset treatment and tools, then strategy and documentation. Like this step, it prepares you for a conversation with the right licensed professional. It doesn't make the decisions for you.

Who is involved, by role

- You and your family: finding the papers, writing down the facts, listing the questions.
- Mom: the documents and the property are hers, and so are the wishes they were written to carry out.
- Your Medicaid planner: helps you identify the legal issues that could affect the Medicaid plan and organize the facts and documents for attorney review, then updates the overall plan based on the attorney's recommendations.
- An elder law attorney: reviews the authority, ownership, trust and transfer questions and gives legal advice before any strategy with legal consequences is put in place.

If you don't have an attorney yet

The Family Caregiver Alliance says a family can ask its local Area Agency on Aging for a legal consult or hire an attorney who specializes in eldercare law. The federal Administration for Community Living describes legal assistance for older adults, funded under the Older Americans Act, in areas that include public benefits such as Medicaid and long-term care financing, and says those services are targeted to older people with economic or social needs. [1] [2]

What this page doesn't promise

How long any step takes, who will be available, or how things turn out. Families move through the steps at different speeds. Nothing here is legal, financial or tax advice, and rules vary by state.

Ready for the next step?

You know where the legal step sits, who does which part and what comes next. The planning interview is a way to put your family's situation in one place: it asks you about it and gives you a free planning report you can bring to your Medicaid planner, to an elder law attorney, or to any conversation about paying for Mom's care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

The nine steps and the division of roles are the Medicaid Planning Roadmap's own. Where to look for an attorney comes from the Family Caregiver Alliance and the Administration for Community Living.

1. Family Caregiver Alliance, What should I do to help get my family member's legal and financial affairs in order?
2. Administration for Community Living, Legal Services for Older Americans Program